

**FIFTH AMENDMENT, RATIFICATION, AND NOTICE OF ADDITION OF LAND TO
DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS
YOWELL RANCH**

THIS FIFTH AMENDMENT TO DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS ("Amendment") is made as of the Effective Date shown below by WBW Development, Ltd., a Texas limited partnership.

RECITALS

A. On or about January 15, 2010, Declarant made that certain Declaration of Covenants, Conditions and Restrictions of record at Instrument #2010-00002251 in the Official Public Records of Bell County, Texas ("Declaration").

B. On or about February 26, 2011, Declarant made that certain First Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2011-000002528 in the Official Public Records of Bell County, Texas.

C. On or about May, 31 2011, Declarant made that certain Second Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2011-00021294 in the Official Public Records of Bell County, Texas.

D. On or about October 15, 2015, Declarant made that certain Third Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2015-00039904 in the Official Public Records of Bell County, Texas, as corrected by Instrument #2015-00043980 on November 16, 2015.

E. On or about September 1, 2020, Declarant made that certain Fourth Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2020-2020046459 in the Official Public Records of Bell County, Texas

F. Declarant continues to own Lots in the Subdivision.

G. Declarant now desires to amend the Declaration as provided herein.

NOW, THEREFORE, pursuant to the authority reserved to Declarant under Article 12.2 of the Declaration, Declarant hereby makes the following supplemental amendments to the Declaration:

1. Capitalized terms used herein shall have the meaning ascribed to them in the Declaration unless the context clearly indicates otherwise.

2. Section 7.30 is deleted in its entirety and replaced with the following:

7.30 Dwelling Size; Building Materials. All new-construction residences constructed after the date of this amendment shall contain not less than 1,325 square feet of enclosed living space, exclusive of porches (open or covered), decks and garages. All building materials shall be approved by the ACA, and only new building materials (except for used brick) shall be used for construction of any improvements. Exposed metal roof decks are prohibited. Other roofing materials may be used with prior written consent of the ACA, which may specify a minimum quality or grade of materials. All projections from a Dwelling or other structure, including but not limited to chimney flues, vents, gutters, downspouts, utility boxes, porches, railings, and exterior stairways shall match the color of the surface from which they project, or shall be of a color approved by the ACA. No highly reflective finishes (other than glass, which may not be mirrored) shall be used on exterior surfaces (other than surfaces of hardware fixtures), including, without limitation, the exterior surfaces of any improvements.

3. Section 12.2(a) is deleted in its entirety and replaced with the following:

12.2 Amendments to Declaration

a. **Amendment by Declarant.** While Declarant owns any real property subject

to this Declaration, Declarant, at its sole discretion and without a vote or the consent of any other party, shall have the right to amend this Declaration for the following purposes: (i) to add real property to the Property, (ii) to withdrawal real property from the Property, (iii) to create lots, easements, common areas, common maintenance areas, fencing and signage, (iv) to modify the use and covenant restrictions in Section VII herein, (v) to comply with the requirements of any governmental authority or institutional lender or underwriting lender, (vi) to resolve conflicts, clarify ambiguities and to correct misstatements, errors or omissions in this Declaration, and (vii) for any other purpose, provided, that such amendment made pursuant to this clause (vii) has no material adverse effect on any right of an Owner.

4. In the event of an inconsistency between this Amendment and the terms of the Declaration, this Amendment shall govern. Except as expressly provided herein, the Declaration has not been amended or modified, and all terms, covenants, conditions and restrictions of the Declaration shall continue in full force and effect with respect to the entire Property. Hereafter, all references to the Declaration shall be deemed to be references to the Declaration as amended and modified by this instrument. The Declaration as herein amended is hereby ratified and approved.

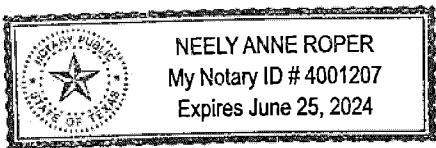
5. This Amendment shall be EFFECTIVE from and after the date of the notary acknowledgement shown below.

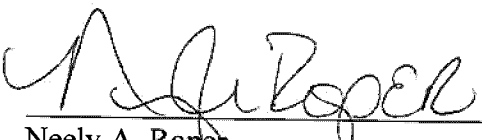
WBW Development, Ltd.
By: WBW Development Management, LLC,
Its General Partner

By: 
Bruce Whitis, President

STATE OF TEXAS §
COUNTY OF BELL §

This instrument was acknowledged before me on the 8th day of October, 2020, by Bruce Whitis, President of WBW Development Management, LLC, a Texas limited liability company, in its capacity as General Partner of WBW Development, Ltd., a Texas limited partnership, on behalf of said limited partnership, and as the act and deed thereof.




Neely A. Roper
Notary Public, State of Texas
My Commission Expires June 25, 2024



**Bell County
Shelley Coston
County Clerk
Belton, Texas 76513**

Instrument Number: 2020061818

As

RESTRICTIONS

Recorded On: November 09, 2020

Parties: WBW DEVELOPMENT LTD

To YOWELL RANCH

Comment:

Billable Pages: 2

Number of Pages: 3

(Parties listed above are for Clerks' reference only)

**** Examined and Charged as Follows ****

CLERKS RMF:	\$5.00
COURT HOUSE SECURITY:	\$1.00
RECORDING:	\$9.00
Total Fees:	\$15.00

******* DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT *******

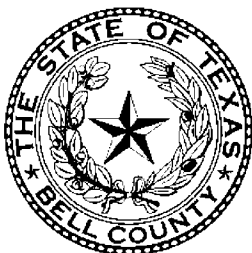
Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Instrument Number: 2020061818
Receipt Number: 155601
Recorded Date/Time: 11/09/2020 9:47:05 AM
User / Station: ramiremng - BCCCD0642

Record and Return To:

WBW Development Group
3000 ILLINOIS AVE STE 100
KILLEEN, TX 76543



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property Records in Bell County, Texas

Shelley Coston
Bell County Clerk